

05-general-terms-conditions

Pemberton Engineering Ltd. — version 5.2 — applies to all purchases

Document 05 of 7 Pemberton ref: PEL/PROC/GTC-v5.2 (issued 1 January 2026)

These General Terms and Conditions of Purchase (“**GTCs**”) apply to all orders placed by Pemberton Engineering Ltd. (“**Buyer**”) for goods and services from any supplier (“**Supplier**”), whether or not a separate framework or master agreement exists between Buyer and Supplier. **Where any conflict arises between these GTCs and any other contractual document — including any Master Supply Agreement, purchase order terms printed on the reverse of any document, or Supplier’s standard terms — these GTCs shall prevail unless Buyer has expressly agreed otherwise in writing signed by an authorised Buyer representative at director level or above.**

1. Definitions

In these GTCs, the following definitions apply:

- “**Order**” means any purchase order issued by Buyer, whether by email, electronic procurement system, or paper.
- “**Goods**” and “**Services**” have the meanings given in the Order.
- “**Affiliate**” means, in relation to a person, any entity controlling, controlled by or under common control with that person.

2. Formation

2.1 Each Order constitutes Buyer's offer to purchase on these GTCs. Supplier's acceptance is deemed given by acknowledgement of the Order or by commencement of performance, whichever is earlier.

2.2 Any terms purported to be incorporated by Supplier (including any printed on or referenced in an acknowledgement, quotation, invoice or delivery note) are expressly **rejected** and shall have no effect.

3. Price

3.1 The price stated in the Order is fixed and inclusive of all packaging, carriage to the receiving site, insurance, customs duties, and any other charge except VAT.

3.2 **Buyer reserves the right at any time to adjust pricing on existing Orders unilaterally** to reflect (i) any reduction in the price offered by Supplier to any third party for substantially comparable goods or services; (ii) any verified third-party offer brought to Supplier's attention by Buyer; or (iii) any improvement in Supplier's input costs of which Buyer becomes aware.

4. Payment

4.1 Payment terms are ninety (90) days from receipt of valid invoice meeting the requirements of clause 4.2. Where a Supplier-favourable longer term is stated in the Order, that longer term shall apply.

4.2 A valid invoice must (i) reference the Order number; (ii) quote Supplier's VAT number; (iii) itemise the Goods or Services to Buyer's coding structure; (iv) be sent to the e-invoicing address nominated in the Order. Invoices not meeting these requirements may be returned and shall not trigger the payment-term clock.

4.3 Buyer may set off against any sum owed to Supplier any amount owed by Supplier to Buyer or any Buyer Affiliate, whether liquidated or unliquidated, present or future.

5. Delivery, Risk and Title

5.1 Delivery is DDP to the receiving site nominated in the Order. Time is of the essence.

5.2 Risk in the Goods passes on signed acceptance at the receiving site. Title passes on payment in full.

5.3 Where Goods are delivered early or in excess of the Order quantity, Buyer may at its option (i) accept them, (ii) reject them, or (iii) store them at Supplier's risk and cost.

6. Acceptance and Rejection

6.1 Goods are subject to inspection and acceptance by Buyer regardless of any prior payment.

6.2 Buyer may reject Goods that do not conform to the Order, the specification, applicable standards, or any sample, within forty-five (45) days of delivery. Rejected Goods shall be returned at Supplier's cost and risk and Buyer shall be entitled to a full refund (or credit against any open invoice) plus reimbursement of any costs reasonably incurred by Buyer arising from the rejection (including handling, storage, and procurement of replacement Goods from third parties).

7. Warranties

7.1 Supplier warrants that the Goods (i) conform to the specification, sample or description; (ii) are fit for any purpose made known to Supplier expressly or by implication; (iii) are free from defects in materials and workmanship for the longer of twenty-four (24) months from acceptance or any longer manufacturer warranty period; (iv) are of satisfactory quality within the meaning of the Sale of Goods Act 1979; and (v) comply with all applicable laws and standards.

7.2 Supplier warrants that the Services shall be performed with reasonable care and skill by appropriately qualified personnel and in accordance with all applicable laws and standards.

8. Remedies

8.1 The remedies available to Buyer for breach of warranty are non-exclusive and include repair, replacement, refund, damages, and procurement of substitute goods or services at Supplier's cost.

8.2 Supplier's liability for any breach is **unlimited** in respect of (i) death or personal injury; (ii) fraud; (iii) breach of confidentiality; (iv) Foreground IP infringement; (v) loss of or damage to tangible property at a Buyer site; and (vi) Supplier's indemnity obligations.

8.3 Subject to clause 8.2, Supplier's aggregate liability under any Order is capped at the greater of (i) £5,000,000 or (ii) 200% of the value of that Order.

9. Intellectual Property

9.1 Any Foreground IP arising in the performance of any Order vests in Buyer absolutely on creation. Supplier hereby assigns to Buyer with full title guarantee all Foreground IP.

9.2 Supplier grants Buyer a perpetual, irrevocable, royalty-free, sublicensable licence over any Background IP embedded in any Goods or Services or required to exploit any Foreground IP.

9.3 Supplier shall indemnify Buyer in respect of any claim that the Goods, Services, or any Foreground IP infringe any third-party IP right.

10. Confidentiality

10.1 Supplier shall keep all information made available by Buyer confidential and use it only for the purposes of performing the Order.

10.2 Confidentiality obligations continue **indefinitely** following termination or expiry.

11. Termination

11.1 Buyer may terminate any Order, in whole or in part, at any time **for any reason or no reason on fifteen (15) days' written notice**. Buyer's liability on such termination is limited to payment for Goods delivered and accepted up to the termination date.

11.2 Buyer may terminate any Order immediately on written notice if Supplier (i) commits any breach of these GTCs; (ii) becomes insolvent; (iii) suffers any change of control to a competitor or Sanctioned Person; (iv) is the subject of any negative finding by a Buyer audit; or (v) does any act that in Buyer's reasonable opinion brings Buyer into disrepute.

12. Audit

12.1 Buyer may, on giving twenty-four (24) hours' notice, audit any aspect of Supplier's performance, including books, records, premises, systems, personnel, sub-suppliers, and any sub-contractor.

12.2 Buyer's auditors may be Buyer employees, Affiliates' employees, or third-party auditors of any kind nominated by Buyer. Supplier shall bear all costs of the audit.

13. Subcontracting

13.1 Supplier shall not subcontract any obligation under any Order without Buyer's prior written consent. Subcontracting does not relieve Supplier of any obligation.

14. Compliance

14.1 Supplier shall comply with all applicable laws, including without limitation the Modern Slavery Act 2015, the Bribery Act 2010, all applicable sanctions and export control laws, and all data protection laws.

14.2 Supplier shall comply with Buyer's Supplier Code of Conduct (available on the procurement portal), which forms part of these GTCs as if set out in full.

15. Insurance

15.1 Supplier shall maintain insurance to such limits and on such terms as Buyer may from time to time require and provide certificates on request.

16. Force Majeure

16.1 Neither Party shall be liable for failure or delay caused by an event beyond its reasonable control, provided the affected Party gives prompt notice and uses reasonable efforts to mitigate. If a force majeure event continues for more than fifteen (15) days, Buyer may terminate any affected Order without liability.

17. General

17.1 **Assignment.** Buyer may assign any rights under these GTCs to any Affiliate or any successor in business. Supplier may not assign or subcontract.

17.2 **Variation.** No variation is effective unless signed by an authorised representative of Buyer at director level or above. Supplier email confirmations of pricing or other commercial terms shall not constitute a variation regardless of the Buyer representative who sent them.

17.3 **Governing law and jurisdiction.** These GTCs and any Order or dispute arising in connection with them shall be governed by English law and subject to the exclusive jurisdiction of the courts of Manchester, England.

17.4 **Notices.** Notices to Buyer shall be addressed to Pemberton's General Counsel at the registered office address.

17.5 **Severance.** If any provision is held to be invalid or unenforceable, the remaining provisions continue in force.

17.6 **Third-party rights.** Affiliates of Buyer may enforce these GTCs as if a party to them.

17.7 **Entire agreement.** These GTCs (together with the Order) constitute the entire agreement and supersede all prior representations.